

(65).
November,
1838.
Alimony.

That, whereas it is expedient to define and declare the form of proceeding to be adopted in matters of alimony, It is ordered that the same shall be by libel and plea, such libel to be sworn before the same shall be filed by the Registrar; and that the mode of bringing the defendant before the Court and the time for appearance and pleading the mode of taking the evidence, as well as the course of proceeding in the cause generally, shall be the same as those established by the Rules and Practice of the Court upon Bills in Equity. It is further ordered that the libel and plea shall be signed by Counsel.

(73).
August, 1839.
Paying money
into Court.

That upon paying money into Court the Solicitor shall furnish the Bank with a correct copy of so much of the order of Court as shall relate to such payment, which copy shall contain the names of the parties to the suit and the date of such order. And it is further ordered that all sums of money to be paid out under any order of Court shall be so paid out upon a cheque to be drawn out and signed by the Registrar and counter-signed by the Master, but not otherwise.

(78).
July, 1841.
Alimony.

That, whereas the order requiring proceedings for alimony to be by libel and plea is attended with inconvenience and it is expedient to alter the same, It is therefore ordered that suits for alimony shall henceforth be by bill *for discovery* and relief or either, and answer and other proceedings in the same manner as other suits in this Court. Provided nevertheless that each discovery shall be subject to the same objections as any other matters of discovery are by the rules and practice of the Court.

The Bill will now be for relief merely, being according to the new rules.

(71).
April, 1839.
Transmission
of papers to
Registrar.

That every answer, deposition or other proceeding in a cause which by the rules or practice of the Court are required to be transmitted to the Registrar by post by the officer of the Court taking the same, may in future be forwarded in a sealed envelope to the Registrar by a messenger or deposited in the Post-Office as may be most convenient, Provided nevertheless that in case such answer, examination, deposition or other proceeding as aforesaid shall be transmitted by a messenger, such messenger shall make oath before the Registrar that he received the same from the hands of the officer of the Court, and that it has not been out of his possession since he so received it, and that the same is in the like state and condition as when it was placed in his hands for transmission, and the Registrar shall forthwith endorse and sign a memorandum on the envelope containing the name, place of residence

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